

## 26STCV22182 26STCV22182

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Case Number: 26STCV22182 Hearing Date: September 22, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on

Demurrer

The Demurrer is sustained in part and overruled in part, with 20 days leave to amend.

### BACKGROUND

Plaintiff Christopher Nelson Berndt (Plaintiff) filed this action against his sister, Cherilin Lee Berndt (Defendant), alleging that Defendant has held herself out as trustee of the Berndt Family Trust dated October 25, 2001 (the Trust) while their mother, Mary L. Berndt (Mary), remains its trustee and is still living.

The causes of action are: (1) Quiet Title; (2) Declaratory Relief; (3) Accounting; (4) Fraud; (5) Intentional Misrepresentation; and (6) Elder Abuse.

Defendant filed a Demurrer. Plaintiff filed an Opposition.

### LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or the facts alleged." [Citation.] (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th

1308, 1315.) As such, courts assume the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

"The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: [¶] (a) [s]trike any irrelevant, false, or improper matter inserted in any pleading...." (Code Civ. Proc., § 436.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc., § 437, subd. (a).)

## ANALYSIS

### I. Subject Matter Jurisdiction

Defendant contends that the whole Complaint must be dismissed because it seeks adjudication of the internal affairs of the Trust, which Probate Code section 17000 commits to the exclusive jurisdiction of the probate court.

Plaintiff argues that this Court has subject matter jurisdiction over every cause of action pleaded, and that an internal affairs concern calls for transfer or coordination instead of dismissal.

A demurrer lies where "[t]he court has no jurisdiction of the subject of the cause of action alleged in the pleading." (Code Civ. Proc., § 430.10, subd. (a).) Probate Code section 17000, subdivision (a), provides that "[t]he superior court having jurisdiction over the trust pursuant to this part has exclusive jurisdiction of proceedings concerning the internal affairs of trusts." That jurisdiction over the trust arises from the trustee's personal submission on accepting the trusteeship and from Code of Civil Procedure section 410.10. (Prob. Code, §§ 17003, 17004.) The court that holds it is a superior court of a county, identified by where the trust is administered and by the trustee's residence. (David v. Hermann (2005) 129 Cal.App.4th 672, 683 [Marin County Superior Court had jurisdiction over a living trust whose trustee resided in that county].)

Subdivision (b) gives that same court concurrent jurisdiction over actions to determine the existence of trusts, actions by or against creditors or debtors of trusts, and other actions involving trustees and third persons. "The

superior court is divided into departments, including the probate department, as a matter of convenience; but the subject matter jurisdiction of the superior court is vested as a whole." (Estate of Bowles (2008) 169 Cal.App.4th 684, 695.)

Defendant correctly identifies this Complaint as one that concerns the Trust's internal affairs. Internal affairs "'include modification of the terms of the trust, changes in a designated successor trustee, other deviation from trust provisions, authority over the trustee's acts, or the administration of the trust's financial arrangements.'" (Harnedy v. Whitty (2003) 110 Cal.App.4th 1333, 1345.) Plaintiff seeks a declaration concerning Defendant's position as trustee and her duties, and an order compelling an accounting of the Trust. (Compl., ¶¶ 28, 34.) Both requests fall within that definition. The identification takes Defendant no further. Section 17000 places exclusive jurisdiction of proceedings concerning internal affairs in the superior court having jurisdiction over the trust, and that court is this Court.

Defendant asks in the alternative that the Court order the Complaint transferred to the probate department.

Distribution of this Court's business among its departments rests with the Presiding Judge. (Gov. Code, § 69508, subd. (a); Cal. Rules of Court, rule 10.603(c)(1)(A).) Assignment among the divisions of this Court is governed by this Court's own rule, which assigns to the Probate Division "[a]ny matter arising under the Probate Code, and any other action, proceeding, or procedure which by statute is to be heard by a judge hearing probate matters." (Super. Ct. L.A. County, Local Rules, rule 2.13(a).) A demurrer is not the means of moving this action between divisions. Defendant filed no application or motion seeking reassignment, and an order sustaining or overruling a demurrer would neither assign this action to the Probate Division nor reassign it. The Court therefore does not decide whether this Complaint presents a matter arising under the Probate Code within the meaning of rule 2.13(a).

Accordingly, the Demurrer on the ground of lack of subject matter jurisdiction is overruled.

## II. Another Action Pending

Defendant contends that an earlier action between the same parties, Los

Angeles Superior Court case No. 25STCV30056, was filed first, remains pending, and involves the same Trust, trustee authority, properties, and primary rights. Defendant asks that this action be abated pending resolution of that one.

A demurrer lies where “[t]here is another action pending between the same parties on the same cause of action.” (Code Civ. Proc., § 430.10, subd. (c).) “[A] demurrer may be sustained on the ground that another cause of action is pending only when the parties in the two cases are identical and the cause of action and issues in the two actions are substantially the same.” (Childs v. Eltinge (1973) 29 Cal.App.3d 843, 848.) Where a demurrer on that ground is sustained and no other special defense is, “an interlocutory judgment shall be entered in favor of the defendant pleading the same to the effect that no trial of other issues shall be had until the final determination of that other action.” (Code Civ. Proc., § 597.)

Here, Plaintiff’s allegations do not show that the two actions state the same causes of action. First, Plaintiff alleges that the earlier Los Angeles action is pending, that Defendant answered it claiming to be the trustee, and that the actions Plaintiff identifies concern the same Trust properties and the same claimed trustee authority. (Compl., ¶¶ 16(A), 17, 21(A), 22.) Second, the allegations that name causes of action describe this action and not the earlier one. (Compl., ¶¶ 17, 22.) Finally, Plaintiff does plead what another action seeks. He describes an Orange County action for quiet title, declaratory relief, fraud, intentional misrepresentation, and elder abuse as to the Trust properties, and that action names four defendants who are not parties here. (Compl., ¶¶ 16(C), 21(C).) The parties in those two cases are therefore not identical.

Grounds 1 and 2 are the only grounds Defendant directs at the declaratory relief and accounting causes of action. (Dem., at pp. 2-3.) Accordingly, the Demurrer on the ground of another action pending is overruled, and this action is not abated. The Demurrer to the Second and Third Causes of Action is overruled.

### III. Quiet Title

Defendant contends that the First Cause of Action fails because Plaintiff pleads no legal description, identifies no instrument vesting present title in him, and claims an interest the Trust contradicts.

Plaintiff argues that the missing legal description is a technical defect and that he can plead the correct property and the correct basis of his interest.

A quiet title complaint “shall be verified” and must include a description of the property, which “[i]n the case of real property” must include “both its legal description and its street address or common designation, if any.” (Code Civ. Proc., § 761.020, subd. (a).) The complaint must also include “[t]he title of the plaintiff as to which a determination under this chapter is sought and the basis of the title.” (Id., subd. (b).) Where an exhibit to a pleading contradicts the pleading’s allegations, “the facts in the exhibits take precedence.” (Holland v. Morse Diesel Internat., Inc. (2001) 86 Cal.App.4th 1443, 1447.)

Here, Plaintiff insufficiently alleges a claim to quiet title. First, Plaintiff describes the property at 8617 Verdosa Drive in Whittier (the Whittier Property) by street address and gives no legal description. (Compl., ¶ 20.) Second, the basis of title Plaintiff pleads is that he “is permitted to reside at a home listed in the Trust” and is “permitted to remain at the Subject Property during his lifetime.” (Compl., ¶¶ 9, 23.) Third, the Trust attached to the Complaint gives Plaintiff a rent-free right to occupy 1331 Orangewood Street in La Habra, not the Whittier Property, and it does so only after the death of the survivor of the two Grantors. (Compl., Ex. A, § 8.01, at p. 8-1.) Plaintiff acknowledges the omission and the terms of that provision. (Opp., at p. 11:7-15.) Finally, the Trust directs the trustee to sell the Whittier Property as soon as practicable after the death of Larry L. Berndt, “even if [Mary] is still living,” and Plaintiff alleges that Larry L. Berndt has died. (Compl., Ex. A, § 8.03, at p. 8-4 [captioned “Section 6.03”]; Compl., ¶ 9.) Thus, the facts in the Trust take precedence over the contrary allegation about the Whittier Property.

Accordingly, the Court sustains the Demurrer to the First Cause of Action with leave to amend.

#### IV. Fraud

Defendant contends that the Fourth and Fifth Causes of Action plead no representation with the required specificity and no reliance by Plaintiff.

Plaintiff argues that the defect is one of specificity and is curable by

amendment.

The elements of fraud are: (1) "misrepresentation (false representation, concealment, or nondisclosure)"; (2) "knowledge of falsity (or 'scienter')"; (3) "intent to defraud, i.e., to induce reliance"; (4) "justifiable reliance"; and (5) "resulting damage." (Lazar v.

Superior Court (1996) 12 Cal.4th 631, 638.) Each element must be pleaded with particularity. That requirement "necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.'" (Id. at p. 645.)

Here, Plaintiff insufficiently alleges fraud. First, Plaintiff alleges that Defendant represented to "Plaintiff, various courts and individuals" that she owned the Trust Property and other Trust properties, and that she "made many representations that were false" in writing and orally. (Compl., ¶ 36.) Second, those allegations identify no particular statement, no date, no place, and no recipient beyond a category. Third, Plaintiff alleges in the same paragraph that Defendant "concealed many facts," and he identifies no fact withheld from him and no occasion on which Defendant withheld it. Finally, Plaintiff pleads no act he took or forbore in reliance on any representation or omission, and no facts showing that reliance was justifiable. Plaintiff alleges that the fraud produced an indebtedness on the Trust Property and damage to the property and to his well-being, without tying either to anything he relied upon. (Compl., ¶ 37.) Plaintiff acknowledges that the representations are pleaded in general terms. (Opp., at p. 12:15-19.)

The Fifth Cause of Action repeats the Fourth almost word for word and supplies no further facts. (Compl., ¶ 39.) Plaintiff's arguments here are the same as above. For the same reasons articulated above, the Court sustains the Demurrer to the Fourth and Fifth Causes of Action with leave to amend.

#### V. Elder Abuse

Defendant contends that Plaintiff lacks standing on the Sixth Cause of Action because the alleged elder is Mary, who is alive, and because Plaintiff pleads no authority to sue on her behalf.

Plaintiff argues that the defect is a missing allegation of representative capacity that he can supply.

“‘Elder’ means any person residing in this state, 65 years of age or older.” (Welf. & Inst. Code, § 15610.27.) Financial abuse of an elder occurs when a person “[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both,” or does so “by undue influence.” (Id., § 15610.30, subd. (a)(1), (3).) “Every action must be prosecuted in the name of the real party in interest, except as otherwise provided by statute.” (Code Civ. Proc., § 367.)

Here, Plaintiff insufficiently alleges standing to prosecute an elder abuse claim. First, Plaintiff identifies Mary as the person abused, alleging that she is more than 65 years old, that Defendant isolated her, and that Defendant has been taking her property and the Trust’s. (Compl., ¶¶ 43, 47 [Sixth Cause of Action].) Second, Plaintiff alleges that Mary is alive, so the injury the Sixth Cause of Action pleads is hers. (Compl., ¶ 10.) Both parties invoke the provision passing an elder abuse action to specified successors after an elder’s death, which by its terms says nothing about a living elder’s claim. (Welf. & Inst. Code, § 15657.3, subd. (d).) Third, Plaintiff alleges no conservatorship, guardianship ad litem, power of attorney, or other authority to sue in Mary’s name. Plaintiff acknowledges that the Complaint does not allege representative capacity. (Opp., at p. 13:8-14.)

Defendant separately contends that the cause of action identifies no particular property, transaction, or taking. Plaintiff alleges that Defendant has been “borrowing money” repeatedly without repaying it, denying services or medical care to conserve funds, and giving away or selling Mary’s possessions without permission. (Compl., ¶ 47 [Sixth Cause of Action].) Those allegations describe categories of conduct and name no item of property, no transaction, and no date. Thus, Plaintiff alleges no act of financial abuse within section 15610.30.

Accordingly, the Court sustains the Demurrer to the Sixth Cause of Action with leave to amend.

## VI. Punitive Damages

Defendant’s Demurrer is also directed at the Complaint’s claim for punitive damages. (Dem., at pp. 1-2.) “Since a demurrer does not lie to a part of a cause of action,” allegations of punitive damages are not subject to demurrer, and their adequacy is tested by a motion to strike. (*Grieves v. Superior Court* (1984) 157

Cal.App.3d 159, 163-164.) Defendant reserved and filed a demurrer without a motion to strike. The Demurrer to the claim for punitive damages is therefore overruled.

## CONCLUSION

The Demurrer is sustained in part and overruled in part, with 20 days leave to amend.

The Court also notes that Plaintiff has filed a Motion to Consolidate, or in the Alternative to Relate Cases, Coordinate Pretrial Proceedings and Stay Related Unlawful Detainer Action Pending Resolution of Overlapping Issues, set for 9/23/2026. The Court advances that motion and takes it off-calendar, for the following reason.

Plaintiff's motion seeks to consolidate this case with 26NWUD00654, an unlawful detainer case filed by Cherilin Berndt as Trustee of the Berndt Family Trust against Plaintiff. Pursuant to Local Rule 3.3(g), cases may not be consolidated unless they are in the same department. Plaintiff never filed a Notice of Related Case in this case and in 26NWUD00654, and thus no decision on relating the cases has occurred. The cases therefore are not related and remain in their respective departments, and thus they cannot be consolidated.